

YC063581 YC063581

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-31

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Case Number: YC063581 Hearing Date: August 31, 2026 Dept: B

Moving

Parties: Defendant Darla Kappelos

Responding

Party: None

Motion

to Vacate Renewal of Judgment

The Court considered the moving papers.

RULING

The motion is DENIED.

BACKGROUND

On November 9, 2010, plaintiff FIA Card Services, N.A. filed a complaint against Darla Kappelos.

On February 2, 2011, defendant filed an answer.

On August 12, 2011, a mediator filed a statement of agreement (full).

On September 15, 2011, plaintiff filed a notice of conditional dismissal.

On October 3, 2011, the case was dismissed with the Court to retain jurisdiction to enforce settlement agreement.

On November 7, 2013, plaintiff's counsel filed a declaration as to default in payments on stipulated judgment.

On December 12, 2013, order and judgment pursuant to stipulation was entered against defendant in the sum of \$6000, plus \$20 in costs, for a total of \$6020.

On November 27, 2023, plaintiff filed an application for and renewal of judgment

On December 26, 2023, a notice of renewal of judgment was issued.

On April 21, 2025, plaintiff filed a proof of service indicating that the notice of application and renewal of judgment was served.

On August 6, 2026, plaintiff filed a substitution of attorney and is now self-represented.

LEGAL AUTHORITY

Under CCP §683.170, "(a) The renewal of a judgment pursuant to this article may be vacated on any ground that would be a defense to an action on the judgment, including the ground that the amount of the renewed judgment as entered pursuant to this article is incorrect, and shall be vacated if the application for renewal was filed within five years from the time the judgment was previously renewed under this article.

(b) Not later than 60 days after service of the notice of renewal pursuant to Section 683.160, the judgment debtor may apply by noticed motion under this section for an order of the court vacating the renewal of the judgment. The notice of motion shall be served on the judgment creditor. Service shall be made personally or by mail.

(c) Upon the hearing of the motion, the renewal may

be ordered vacated upon any ground provided in subdivision (a), and another and different renewal may be entered, including, but not limited to, the renewal of the judgment in a different amount if the decision of the court is that the judgment creditor is entitled to renewal in a different amount.”

DISCUSSION

Defendant Darla Kappelos
(self-represented) requests that the Court vacate renewal of judgment.

Defendant states in her
declaration that she was never served summons and complaint and never lived at the last known address, 11690 Pacific Ave., Ste 100, Fontana, CA 92337, listed on the application for and renewal of judgment.

The Court notes that
there is no proof of service of the motion on plaintiff’s counsel. Further, the motion is untimely filed under CCP §683.170(b) as it was not filed within sixty days of service of the notice of renewal of judgment.

The motion is DENIED.

ORDER

The motion is DENIED.

The clerk is to give
notice of ruling.